

matters in this county.

The amount for attorney's fees thus amounts to \$5,130.

This leaves a difference of \$285 that are presumably attributable to other costs. However, these specific costs are not itemized in any detail, so the court will not award them.

Disposition

Plaintiff's Motion is denied.

Sanctions in the amount of \$5,130, will be awarded for Defendant, and against Plaintiff.

Sanctions are to be paid by 2/11/27, 5pm.

Defendant to file Order and to serve copy of filed Order on Defendant.

[11](#) This court, on 4/14/12, sustained a demurrer to the second cause of action of the Second Amended Complaint ("SAC") without leave to amend. This court also struck the request for exemplary damages under Civ 3340, without leave to amend, as well as requests for punitive damages and the special or peculiar value of Chloe; for these last two, however, the court granted leave to amend.

7. 9:00 AM CASE NUMBER: L25-07360
CASE NAME: CAPITAL ONE N.A. VS. FLORENCE PACIS
MOTION FOR ORDER THAT MATTERS IN REQ FOR ADMISSION OF TRUTH OF FACTS BE DEEMED
ADMITTED FILED BY PLTF. ON 04/10/2026
FILED BY: CAPITAL ONE N.A.
***TENTATIVE RULING**

This matter was vacated.

8. 9:00 AM CASE NUMBER: L25-07406
CASE NAME: SYNCHRONY BANK VS. JULIO RODRIGUEZ
MOTION TO SET ASIDE DEFAULT JUDGMENT FILED 5/4/26
FILED BY: RODRIGUEZ, JULIO
***TENTATIVE RULING**

Defendant has filed a Motion to set aside a default judgment, along with a Declaration.

There is no Response from Plaintiff, but Defendant has not offered any evidence that he provided notice of the Motion and hearing to Plaintiff.

Disposition

The Motion will be continue to 10/6/26, 9am.

Defendant to provide notice of Motion and new date of hearing to Plaintiff.

Court to file Order.

9. 9:00 AM CASE NUMBER: L25-07432
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. KOH MASUNO
MOTION TO ENTER JUDGMENT FILED BY PLTF. ON 04/10/2026
FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Background

Plaintiff filed, on 4/10/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration and Memo on costs. The Motion was served by mail on counsel for Defendant.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,547.45, less any credits for payments received.

Defendant defaulted on the agreement.

Defendant made total payments in the amount of \$150.

The Memo on costs reflects costs of \$363.56.

The Stipulation was filed on 9/4/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,761.01.

Plaintiff to file Order on Motion, as well as submit Judgment.

Plaintiff to serve Defendant with a copy of filed Order.